

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

HUNTER DAWKINS
22383 Meadowlark Drive
Pass Christian, MS 39571

Plaintiff

v.

Civil Action No. _____

TULLY CONSTRUCTION CO. INC.
127-50 Northern Blvd.
Flushing, NY 11368

Serve: Peter K. Tully
127-50 Northern Blvd.
Flushing, NY 11368-1520

Defendant.

COMPLAINT FOR DAMAGES

(Automobile Collision: Rollover, Severe Brain Injuries to College Student)

JURISDICTION AND VENUE

1. Jurisdiction of this court is founded upon diversity of citizenship and amount in controversy pursuant to 28 U.S.C. Section 1332. The amount in controversy, exclusive of interests and costs, exceeds Seventy Five Thousand (\$75,000.00) Dollars.

2. Venue is appropriate in this forum pursuant to 28 U.S.C. Section 1391(a), since the events occurred in the District of Columbia.

PARTIES

3. At all times relevant herein, Plaintiff Hunter Dawkins was an adult citizen and resident of the State of Mississippi.

4. Upon information and belief, and at all times relevant herein, Defendant Tully Construction Co. Inc., (hereinafter "Tully Construction") was a New York corporation with its principle place of business in New York. Defendant Tully Construction is engaged in, among other things, acting as a general contractor in the construction of highways, tunnels, bridges, landfills, airports, and environmental projects.

5. Upon information and belief, and at all relevant times herein, Tully Construction owned and/or leased the vehicle involved in the collision, driven by Christopher Tully.

FACTS

6. On April 16, 2005, at approximately 3:10 a.m., Plaintiff Hunter Dawkins was one of three passengers in a vehicle, driven by Christopher Tully, which was traveling north on 13th Street, NE, Washington, D.C. Upon information and belief, Plaintiff Dawkins was seated in the back of the vehicle.

7. Upon further information and belief, Christopher Tully was the permissive user of the vehicle owned and/or leased by Tully Construction.

8. Upon further information and belief, Mr. Tully, the driver of the vehicle, was traveling at a high rate of speed when his vehicle crossed over the double yellow line to pass another vehicle, which was stopped at a red light at the intersection of 13th Street and Franklin Street, NE, Washington DC. Mr. Tully proceeded to run the red light at the above-mentioned intersection. While he was passing through the

intersection, another vehicle, traveling west on Franklin Street, NE, was proceeding through the same intersection. The other vehicle violently collided with the vehicle driven by Mr. Tully, and in which Plaintiff Dawkins was a passenger.

9. Upon information and belief, as a result of the violent collision, Mr. Tully's vehicle became airborne, struck the light pole on the northwest corner of the street and a tree before finally coming to a rest on its right side in the southbound lane of 13th Street. Upon further information and belief, all passengers in the Tully vehicle, including Plaintiff Dawkins, were ejected or partially ejected from the vehicle.

10. As a result of the collision, Plaintiff suffered severe personal injuries, some or all of which may be permanent in nature, including but not limited to, multiple skull fractures, brain damage, multiple pulmonary contusions requiring chest tubes, dysphasia, and a subdural hematoma.

11. Upon information and belief, Christopher Tully was charged with aggravated assault as a result of the accident.

COUNT I
(Negligence)

12. Plaintiff hereby incorporates by reference paragraphs 1-11 above, and further states that the collision set forth above was a direct and proximate result of the negligence of Christopher Tully, in failing to maintain proper control of his vehicle, failing to pay full time and attention to the operation of his vehicle, failing to pay full time and attention to other vehicles on the road, driving recklessly, failing to stop for a red light, failing to apply his brakes in a timely fashion to avoid the collision, and in

otherwise failing to adhere the applicable motor vehicle laws then and there in full force in effect in the District of Columbia.

13. As a direct and proximate result of the negligence of Christopher Tully, Plaintiff Dawkins suffered serious and painful injuries, some or all of which may be permanent in nature, including, but not limited to; multiple skull fractures, brain damage, multiple pulmonary contusions requiring chest tubes, dysphasia, and a subdural hematoma.

14. In addition, Plaintiff Dawkins suffered physical pain, discomfort, and mental anguish, which will or may continue in the future; substantial expenses for doctors and related care were incurred, and may be incurred in the future; he has lost or may lose substantial wage-earning capacity as a result of his severe and permanent injuries; he is unable to perform all of the usual affairs and daily activities of a person his age and position in life; and in the future, he will or may continue to be unable to perform such affairs and daily activities.

15. Upon information and belief, and at all relevant times herein, Christopher Tully was operating the vehicle with the permission of Defendant Tully Construction. Defendant Tully Construction owned and/or leased the vehicle driven by Mr. Tully. Consequently, Tully Construction is vicariously liable for the negligence of Christopher Tully, and all negligence of Christopher Tully is imputed to Tully Construction.

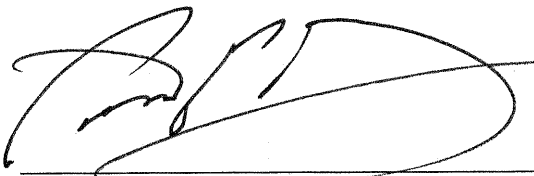
WHEREFORE the Plaintiff Hunter Dawkins demands judgment against Defendant Tully Construction Co., Inc., in the full and just amount of Ten Million Dollars (\$10,000,000.00), plus interest and costs of this action.

JURY DEMAND

The Plaintiff requests a jury trial on all of the above claims

Respectfully submitted,

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